

SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY

-----X  
ERIC PUGLIONESI,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER  
BISMAL TINEO (Shield # 3560), and NYPD  
OFFICERS JOHN and JANE DOE #'s 1-12  
(names and numbers unknown at this time), and  
Other Unidentified members of the New York City  
Police Department,

Defendants.  
-----X

**SUMMONS**

Basis of Venue:  
Place of Incident

Plaintiff Designates  
Bronx County  
as the place of trial.

**To the above-named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
September 14, 2021

Respectfully submitted,

/s/ Sydney O'Hagan  
Sydney O'Hagan, Esq.  
40 Exchange Place  
Suite 1000  
New York, New York 10005  
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[sydney.ohagan@gmail.com](mailto:sydney.ohagan@gmail.com)

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

BISMAL TINEO (Shield # 3560), 40<sup>th</sup> Precinct, 257 Alexander Avenue, Bronx, NY, 10454-1133

SUPREME COURT OF THE STATE OF NEW YORK  
BRONX COUNTY

-----X  
ERIC PUGLIONESI,

**VERIFIED COMPLAINT**

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER  
BISMAL TINEO (Shield # 3560), and NYPD  
OFFICERS JOHN and JANE DOE #'s 1-12  
(names and numbers unknown at this time), and  
Other Unidentified members of the New York City  
Police Department,

Defendants.

-----X

Plaintiff **Eric Puglionesi**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

**PARTIES**

2. Plaintiff is a resident of the Bronx County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER BISMAL TINEO, assigned Shield # 3560, employed with the 40th Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER BISMAL TINEO (Shield # 3560) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on February 6, 2020.

### **STATEMENT OF FACTS**

15. On November 6, 2019 at approximately 2:35 p.m. in the area of East 149th Street and Brook Avenue in Bronx County, New York, numerous uniformed police officers from the 40th Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Bismal Tineo (Shield #3560) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
16. On November 6, 2019 at approximately 2:35 p.m., Plaintiff was walking in the area of Brook Avenue and East 149<sup>th</sup> Street in Bronx County, New York. He was not engaged in any criminal

activity at the time, nor at any time beforehand, and was simply walking down the street after finishing his shift with the New York City Parks Department, and towards the subway stop two blocks away at 3<sup>rd</sup> Avenue and East 149<sup>th</sup> Street. Plaintiff was not smoking, holding, or possessing any marijuana or synthetic marijuana at any time prior to his arrest.

17. At that time, numerous uniformed NYPD Officers including, upon information and belief, NYPD Officer Bismal Tineo (Shield #3560), converged upon Plaintiff from behind, and, without saying anything to Plaintiff, immediately grabbed his arms, frisked him, and placed him in handcuffs and under arrest.
18. Plaintiff did not consent to the stop or search of his person prior, or subsequent to his arrest.
19. Once the defendant officers approached Plaintiff, he was not free to leave.
20. Plaintiff was transported to the 40th Precinct where he remained in custody until he was transferred to Bronx Central Booking. Plaintiff was arraigned in Bronx Criminal Court on November 7, 2019, and released on his own recognizance. From his arrest to his release, Plaintiff was incarcerated for approximately 21.5 hours.
21. During his confinement at the 40th Precinct and Bronx Central Booking, respectively, Plaintiff was subjected to depraved, filthy and inhumane conditions.
22. While plaintiff was incarcerated at the 40th precinct and Bronx Central Booking, defendants falsely and maliciously told the Bronx County District Attorney's Office that Plaintiff had committed numerous crimes, including Criminal Possession of a Controlled Substance in the Seventh Degree, Unlawful Possession of Marijuana in the Second Degree, and Possession of Synthetic Cannabinoid. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.

23. Plaintiff made two additional court appearances after his arraignment before his case was dismissed and sealed on February 10, 2020.
24. As a direct result of Plaintiff's false arrest and malicious prosecution he missed a day of work, resulting in approximately \$120 in lost wages.

### **FIRST CAUSE OF ACTION**

#### **FALSE ARREST AND FALSE IMPRISONMENT**

25. Plaintiff repeats, reiterates and reallages each and every allegation contained in paragraphs marked 1 through 24 as if fully set forth herein.
26. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendant officers approached Plaintiff when he was committing no crime and searched him without his consent. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, placing him in handcuffs and keeping him in custody for more than 21 hours. Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
27. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
28. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

### **SECOND CAUSE OF ACTION**

#### **MALICIOUS PROSECUTION**

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
31. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, stopping and detaining him without probable cause. This arrest caused Plaintiff a serious deprivation of liberty as a result, including 21 hours of incarceration. Plaintiff obtained a favorable termination on the fabricated charges on February 10, 2020 when all charges against him were dismissed and sealed upon motion of the prosecution.
32. Defendants commenced and continued a criminal proceeding against Plaintiff.
33. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted. For this reason, the prosecution consented to the dismissal of the charges against him.
34. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
35. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

### **THIRD CAUSE OF ACTION**

#### **NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

36. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.
37. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

**FOURTH CAUSE OF ACTION****FAILURE TO INTERVENE**

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.
39. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to an unlawful search and seizure, detention and prosecution.
40. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
41. As a result of the foregoing, Plaintiff was subjected to an illegal search and undue force upon his person over the course of his false arrests.
42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
43. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

**FIFTH CAUSE OF ACTION****INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
45. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct

utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

46. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
47. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

### **FEDERAL CLAIMS**

#### **FIRST CLAIM FOR RELIEF**

#### **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
49. All of the aforementioned acts of defendants OFFICER BISMAL TINEO and NYPD OFFICERS JOHN and JANE DOE" #1-12, their agents, servants, and employees, were carried out under the color of state law.
50. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
52. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules

of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

53. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

### **SECOND CLAIM FOR RELIEF**

#### **FALSE ARREST UNDER 42 U.S.C. § 1983**

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
55. As a result of the aforesaid conduct by defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12. He was approached, searched, and arrested without probable cause because he was committing, and had not committed, any crime at the time officer’s approached him. He was taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
56. As a result of the foregoing, Plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

### **THIRD CLAIM FOR RELIEF**

#### **UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Plaintiff was searched by defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12 without an individualized reasonable suspicion that Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances. When defendant officers approached defendant, he was not engaged in any illegal activity. He did not consent to the search of his person.
59. As a result of the aforesaid conduct by defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12, Plaintiff’s person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
60. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

#### **FOURTH CLAIM**

##### **DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
62. Defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12 created false evidence against the plaintiff, alleging that he possessed a controlled substance when he did not. For this reason, the District Attorney dismissed charges against Plaintiff.
63. Defendants OFFICER BISMAL TINEO, and POLICE OFFICERS “JOHN DOE” #1-12 forwarded false evidence and false information to prosecutors in the Bronx County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had

possessed a controlled substance and marijuana at the time of his arrest, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff possessed any controlled substance or other contraband, and, in fact, did not have probable cause to arrest him for said offenses.

64. Defendants OFFICER BISMAL TINEO, and POLICE OFFICERS “JOHN DOE” #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
65. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12 violated Plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
66. As a result of the foregoing, Plaintiff’s liberty was restricted for an extended period of time – at least 21 hours - and he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

#### **FIFTH CLAIM FOR RELIEF**

##### **FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
68. Defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12 had an affirmative duty to intercede when Plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff’s arrest throughout all phases of the criminal proceedings.

69. Defendants OFFICER BISMAL TINEO and POLICE OFFICERS “JOHN DOE” #1-12 further violated Plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.
70. As a result of the defendants’ failure to intercede when Plaintiff’s constitutional rights were being violated in defendants’ presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

#### **SIXTH CLAIM FOR RELIEF**

##### **MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
72. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 misrepresented and falsified evidence before the Bronx County District Attorney, including false allegations that Plaintiff committed any illegal acts and/or possessed any contraband. Plaintiff in fact was not in possession of any contraband at the time of his arrest.
73. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 did not make a complete and full statement of facts to the District Attorney, including the circumstances surrounding the stop and search of the Plaintiff.
74. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 withheld exculpatory evidence from the District Attorney, including that there was in fact no contraband on Plaintiff’s person at the time of his arrest, and that he was not engaged in any criminal activity before he was approached, searched, and seized by police.

75. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff, as Officer Tineo was the arresting officer who signed the criminal complaint.
76. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
77. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 acted with malice in initiating criminal proceedings against plaintiff.
78. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
79. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
80. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN or JANE DOE” #1-12 acted with malice in continuing criminal proceedings against plaintiff.
81. Defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN DOE” #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
82. Specifically, defendants OFFICER BISMAL TINEO and/or POLICE OFFICERS “JOHN DOE” #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff’s arrest.
83. Notwithstanding the perjurious and fraudulent conduct of defendants OFFICER BISMAL TINEO, and/or POLICE OFFICERS “JOHN DOE” #1-12, the criminal proceedings were terminated in Plaintiff’s favor on February 10, 2020.

84. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**EIGHTH CLAIM FOR RELIEF**

**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

85. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
86. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
87. The 40<sup>th</sup> precinct has had more than 6,000 claims of misconduct lodged against it and its officers since 1994, according to CCRB records.
88. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
  - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
  - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
  - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

89. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
90. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
91. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
92. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff' constitutional rights.
93. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff' constitutional rights.
94. The acts complained of deprived the Plaintiff of their right:
- F. Not to be deprived of liberty without due process of law;
  - G. To be free from seizure and arrest not based upon probable cause;
  - H. Not to have summary punishment imposed upon them; and
  - I. To receive equal protection under the law.

**WHEREFORE, ERIC PUGLIONESI**, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York  
September 14, 2021

Respectfully submitted:

By:                     /s/ *Sydney O'Hagan*                      
Sydney O'Hagan, Esq.  
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New York, New York 10005  
(774) 218-3461  
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TO:  
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007  
  
BISMAL TINEO (Shield # 3560), 40<sup>th</sup> Precinct, 257 Alexander Avenue, Bronx, NY, 10454-1133

## ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York  
September 14, 2021

Sydney O'Hagan, Esq. */s/ Sydney O'Hagan*